

25STCV30093 25STCV30093

County: los-angeles

Division: Civil Law and Motion

Department: 309

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Case Number: 25STCV30093 Hearing Date: September 2, 2026 Dept: 309

Superior Court of California

County of Los Angeles

DEPARTMENT

17

TENTATIVE RULING

JOVANNY TAPIA

vs.

GENERAL MOTORS, LLC

Case

No.: 25STCV30093

Hearing Date: September 2, 2026

Defendant's

motion for a judgment on the pleadings as to the fifth cause of action is
GRANTED.

On

10/14/2025, Plaintiff Jovanny Tapia (Plaintiff) filed suit against General
Motors, LLC (Defendant), alleging violations of the Song-Beverly Warranty Act.

On

4/28/Defendant moved for a judgment on the pleadings as to the fifth cause of action for fraudulent inducement.

Discussion

Defendant

argues that Plaintiff cannot state a claim for fraudulent inducement--concealment because the claim is barred by the economic loss rule and independent tort principle

After

review, the Court agrees.

Plaintiff

seeks purely economic damages allegedly sustained from the purchase of the Subject Vehicle. In other words, Plaintiff alleges he would not have acquired the vehicle. (Complaint ¶ 54.)

The

California Supreme Court's recent decision in *Rattagan v. Uber Techs., Inc.* (2024) 17 Cal.5th 1, 553 P.3d 1213 clarifies that fraudulent concealment claims are permissible only where the concealed information exposes plaintiffs to risks or harms beyond the reasonable contemplation of the contractual relationship. (Id. at 13, 31.) For example, the *Rattagan* plaintiff alleged reputational and personal harm, including arrest and public vilification, resulting from Uber's intentional concealment during their contractual relationship—harms that extended far beyond economic loss tied to the contract. By contrast, Plaintiff here alleges no such independent harm. Plaintiff's allegations relate solely to contractual grievances about vehicle performance and warranty obligations.

The

California Supreme Court's recent dismissals of *Dhital v. Nissan North America, Inc.* and *Kia America, Inc. v. Superior Court (Kia)* on December 18, 2024 further reinforce the application of the ELD to bar claims like Plaintiff's. In *Dhital*, the plaintiffs alleged fraudulent concealment based on the manufacturer's pre-sale knowledge of vehicle defects obtained through consumer complaints, warranty data and other sources. Similarly, *Kia* involved allegations of presale concealment where

plaintiffs claimed the automaker failed to disclose known defects in its vehicles. The dismissals of these cases suggest that the California Supreme Court did not find unresolved or novel legal issues warranting further review, particularly in light of its recent decision in *Rattagan*, which clarified the application of the ELD to fraudulent concealment claims. Together, these dismissals reinforce *Rattagan* as the paramount authority governing the economic loss doctrine.

Based on the foregoing, Defendant's motion for a judgment on the pleadings is granted as to the fifth cause of action.

It is so ordered.

Dated: September
, 2026

Hon. Jon R.
Takasugi

Judge of the
Superior Court

Parties who intend to submit on this tentative must send an email to the court at by 4 p.m. the day prior as directed by the instructions provided on the court website at www.lacourt.org. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If all parties to a motion submit, the court will adopt this tentative as the final order. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. For more information, please contact the court clerk at (213) 633-0517.